

shall have issued through fraud, or in error, or mistake, to decree the same to be void; and upon the Registry of such Decree in the Office of the Provincial Registry of this Province, such Patents shall be deemed void, and of none effect to all intents and purposes whatsoever, and that the practice and proceeding in Court in such cases shall be regulated by orders to be from time to time made and issued by the said Courts respectively."

No orders of Court have been made expressly under this Act, but the proceedings are of course governed by the General Orders.

Court remodelled.

The Constitution of the Court was materially altered by the 12th Vic. Ch. 64, intitled "*An Act for the more effectual Administration of Justice in the Court of Chancery of the late Province of Upper Canada.*"

Under this Act the number of Judges was increased to three, and the offices of Registrar and Master were separated. They had formerly been filled by one person.

How Court constituted.

The Court now consists of the Chancellor and two Vice Chancellors. There are a Master, and Master's Clerk, a Registrar, who is also Registrar of the Court of Appeals, and Registrar's Clerk, and a Reporter. The payment of Officers by fees is abolished by this Act, and the fees are funded, the Officers being paid by Salaries.

Alterations in the practice suggested by 12 Vic. Ch. 64.

The 12th Section of the Act recites the appointment of the Chancery Commissioners, and that "Whereas the said Commissioners by the Report respectively made on the *Twentieth day of April in the Eighth year of the Reign of Her Present Majesty, and on the Twentieth day of January then next ensuing*, recommended certain alterations to be made in the pleadings and practice of the said Court, and, whereas it is desirable that the suggestions of the said Commissioners in regard to shortening the Bill and answer, and enabling the Plaintiff to obtain discovery through the medium of a *vivâ voce* examination of the Defendant, and for extending a like privilege to the Defendant in relation to the *vivâ voce* examination of the Plaintiff, should be adopted;

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